

Plaintiffs take issue with the fact that Rader does not specify that she was using the land for the necessary five years to establish a prescriptive easement. The Court disagrees. The FACC clearly alleges that the family has been using the access road for over fifty years. By Plaintiffs' own arguments, any written easement that the Rader family had was extinguished in 2000 when the Cuplers took title to the land. Nonetheless, Rader continued to use the access road openly and notoriously after that date.

Accordingly, the FACC alleges that Rader is the claimant of the land in interest by either constructive notice or prescriptive easement, and the Plaintiffs have claimed an interest adverse to her own. Thus, Rader has sufficiently alleged a cause of action for quiet title.

The MJOP as to the FACC's cause of action for quiet title is overruled.

B. Declaratory Relief /Injunctive Relief

Code of Civil Procedure section 1060 allows for the bringing of an action for declaratory judgment in order to ascertain the ongoing rights and duties of parties to an actual controversy. " 'One test of the right to institute proceedings for declaratory judgment is the necessity of present adjudication as a guide for plaintiff's future conduct in order to preserve his legal rights.'" (*Meyer v. Sprint Spectrum L.P.* (2009) 45 Cal.4th 634, 647.)

For the same reasons as stated above, Rader has sufficiently pled a cause of action for quiet title and can reasonably seek a judgment to ascertain the rights and duties of the parties because there is an actual controversy.

Injunctive relief is a remedy, not an individual cause of action. (*Allen v. City of Sacramento* (2015) 234 Cal.App.4th 41, 65.) Thus, before injunctive relief can be granted, a cause of action must exist. (*Ibid.*) Here, the Court has found that Rader has sufficiently pled a cause of action for quiet title. Accordingly, the request for injunctive relief is also proper.

The MJOP as to the causes of action for declaratory and injunctive relief are overruled.

C. Slander of Title

"Slander or disparagement of title occurs when a person, without a privilege to do so, publishes a false statement that disparages title to property and causes the owner thereof " 'some special pecuniary loss or damage.'" (*Sumner Hill Homewoners' Assn., Inc. v. Rio Mesa Holdings* (2012) 205 Cal.App.4th 999, 1030.) Where, as here, the alleged title is based on prescriptive rights, there can be no slander of title claim *until* the determination of title has been made by the Court. (*Id.* at 1028-1029.) Because there has been no determination as to Rader's claimed rights, she cannot maintain a cause of action for slander of title.

Accordingly, the MJOP as to the cause of action for slander of title is sustained, without leave to amend.

V. Conclusion

For all the foregoing reasons, Defendant's motion for judgment on the pleadings is denied.